

**MARSHALL DENNEHEY WARNER
COLEMAN & GOGGIN**

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Authority

JESSE HERNANDEZ

v.

INDEPENDENCE TREE SERVICE LLC and
SOUTHEASTERN PENNSYLVANIA
TRANSPORTATION AUTHORITY

v.

MINORITY SERVICES

: PHILADELPHIA COUNTY
: COURT OF COMMON PLEAS
:
: CIVIL ACTION
:
: DECEMBER TERM 2018
:
: NO. 02689
:

**DEFENDANT SOUTHEASTERN PENNSYLVANIA TRANSPORTATION
AUTHORITY'S REVISED PRE-TRIAL CONFERENCE MEMORANDUM**

Defendant Southeastern Pennsylvania Transportation Authority ("SEPTA"), by and through its counsel, Marshall Dennehey Warner Coleman & Goggin, hereby submits the following Revised Pre-Trial Conference Memorandum:

I. PRELIMINARY STATEMENT

This personal injury lawsuit was filed by Plaintiff Jesse Hernandez ("Plaintiff"), a trained and experienced railroad worker, who stepped in front of an oncoming SEPTA train. Plaintiff was digging a trench alongside the Regional Rail tracks before his accident. Plaintiff's Railroad Safety Credentials are attached hereto as Exhibit A.

Significantly, no one disputes that multiple warnings were given to Plaintiff and his co-workers that the subject train was approaching. The testimony in this case is replete with the fact that the subject train blew its horn and flashed its lights, and that the Co-Defendant Independence

Construction's subcontracted watchman on duty sounded an air horn to warn the workers, including Plaintiff, of the approaching train. Each of the eleven (11) other individuals at the work site remained in or went to locations of safety as the train passed. Plaintiff was on notice of the approaching train, yet he alone left a place of safety, and stepped in front of the moving train.¹

The simple fact is that Plaintiff would not have been hit if he had simply stayed where he was – on the opposite side of the trench, against a bridge abutting the tracks. Instead, Plaintiff ignored multiple warnings, stepped away from the abutting bridge, into the trench, and then climbed out of the trench into the train's path. Plaintiff placed himself in harm's way.

II. FACTS

Plaintiff performed trenching work along the railroad for two (2) years prior to the date he stepped in front of a SEPTA train:

Q. Had you done that for other projects besides this specific one?

A. All the projects were doing that. We had to dig the holes and put the pipes in.

Q. Okay.

A. Six feet holes.

Q. How long were you consistently doing that project before your accident?

A. **I was like two years.**

Q. **Two years?**

A. **Yeah.**

¹ The train video depicting the accident will be available for viewing at the Pre-Trial Conference.

Exhibit B, Deposition Testimony of Plaintiff Jesse Hernandez at Page 21, Lines 6 – 16.

Emphasis added. Plaintiff was also aware of a very simple instruction to look both ways before ever attempting to cross train tracks:

Q. Okay. Was there any conversation that you are supposed to look both ways before you go on the tracks?

A. **Yes, look both ways, side to side every time you go across the tracks.**

Q. Okay. And that was every time you are supposed to look?

A. Uh-huh.

Q. **Because you are supposed to expect the train from either direction, right?**

A. **Yes.**

Q. **Okay. If you were getting out of the hole and you were approaching the track, would you look both ways?**

A. **Yes.**

Exhibit B, Deposition Testimony of Plaintiff Jesse Hernandez at Page 76, Lines 2 – 15.

Emphasis added.

A total of twelve (12) workers were at the job site when Plaintiff stepped in front of the SEPTA train, as evidenced by the Job Briefing performed that morning. A true and correct copy of the Job Briefing Document is attached hereto as Exhibit C. Many of these individuals were deposed in this matter. Their testimony establishes that when a train came through the work site, there were multiple forms of warning given, including (1) an air horn blown by the watchman on duty; (2) a paddle held up by the watchman on duty; (3) a horn from the approaching train; and (4) flashing lights from the approaching train. The auditory warnings were extremely loud, and

were clearly heard prior to Plaintiff stepping in front of the train.² Plaintiff's co-workers testified that, prior to Plaintiff stepping in front of the train, they specifically heard the horn of the train that hit Plaintiff and saw this train's flashing lights. They also heard the watchman's horn and saw the watchman's paddle, alerting them to the approaching train. Plaintiff does not remember the incident, and thus he cannot dispute the testimony of his co-workers:

Q. All right. Do you have any idea one-way or the other whether the horn blew before your accident?

A. *I don't remember. I don't remember nothing. I don't remember. I wish I could tell you, but I don't remember.*

Q. Do you have any idea whether the train horn blew before your accident?

A. *I don't remember.*

Exhibit B, Deposition Testimony of Plaintiff Jesse Hernandez at Page 62, Lines 12 – 19.

III. LIABILITY

Plaintiff maintains claims against Defendants SEPTA and Independence.³ Independence joined one of its subcontractors, Minority Services, as an Additional Defendant. Independence withdrew its claims against Minority Services after their respective insurance companies reached an agreement concerning coverage for the claim. However, SEPTA still maintains Cross-Claims against Minority Services.

A. PLAINTIFF'S CLAIMS AGAINST SEPTA FAIL.

As is clear from the video of the incident, Plaintiff stepped in front of the train at the last moment. A train engineer cannot stop a train in such a short period of time, and no trier of fact could conclude otherwise. This is a fact that has been recognized by the Pennsylvania Supreme

² Numerous SEPTA employees also testified as to the multiple warnings given relative to the approaching train.

³ The Court dismissed Plaintiff's claims against SEPTA relative to failure to hire, train, and supervise and for punitive damages, as SEPTA is immune.

Court. *See Moss v. Reading Co.*, 212 A.2d 226, 229 (Pa. 1965) (upholding nonsuit, directed by the Philadelphia County Court of Common Pleas following the close of Plaintiff's case on liability, where trespasser was struck by an oncoming train, as "[t]he mere fact that [the application of the emergency break] was too late to avoid the accident can in no way detract from the fact that the engineman took reasonable care to avoid the accident the minute he realized that decedent was in a position of peril.").⁴

This accident was certainly unfortunate, but the fact remains that, had Plaintiff followed his training, it would not have occurred. Plaintiff was warned that a train was approaching, as were his co-workers. Plaintiff chose to step in front of an oncoming train, and he cannot recover against SEPTA as a matter of law.

Moreover, Plaintiff's Claims do not fall within any exception to SEPTA's sovereign immunity. Only the motor vehicle exception is argued by the plaintiff to be potentially at issue herein. There is no question that the train was operated with care, and, in fact, Plaintiff's liability expert, Gus Da Silva, takes no issue with how the train was operated. Consequently, it is undisputed that the train was operated with due care. Since the train was **not** operated negligently, SEPTA is immune and no exception to SEPTA's immunity applies to the claim.

The crux of Plaintiff's argument is that a different safety program should have been implemented. Plaintiff styles these claims as a failure to communicate. However, these allegations relating to the failure to communicate do not fit within the limited exceptions to sovereign immunity. In any event, as evidenced above, the train approach was communicated to the workers. Therefore, Plaintiff Hernandez cannot sustain a claim against SEPTA. Exceptions

⁴ SEPTA does not argue that Plaintiff was a trespasser. This case is cited only to evidence how the Pennsylvania Supreme Court has taken judicial notice of the inability for a train engineer to avoid a collision when the individual puts himself in harms way.

to sovereign immunity must be "strictly construed as to uphold legislative intent and insulate the Commonwealth and its political subdivisions from tort liability." *Warnecki v. Southeastern Pennsylvania Transportation Authority*, 689 A.2d 1023, 1025 (Pa. Cmwlth. 1997). Plaintiff's allegations that a different safety program should have been implemented, whether stylized as a failure to communicate or otherwise, do not fall within any of these limited exceptions. Indeed, Plaintiff's Amended Complaint does not reference a program of safety specifically because this clearly does not fall within the exceptions to sovereign immunity.

Plaintiff additionally argues that his claims fall within the real estate exception to sovereign immunity because the work being performed was fouling the track. SEPTA does not own the land so the Real Estate Exception is not at issue. However, if SEPTA owned the land, the Real Estate exception would still be inapplicable. In order for the Real Estate Exception to be met, the accident has to be caused by a dangerous condition which derives from, originates from, or has as its source Commonwealth realty. *Jones v SEPTA* 565 PA. 211 (2001). There is no condition of the Real Estate at issue here

Assuming *arguendo* that Plaintiff would be permitted to submit a claim that SEPTA was negligent related to its safety program and supervision of the site, Plaintiff's argument that SEPTA was negligent would still fail. First and foremost, the work was not fouling the track. SEPTA's liability expert, David Brookings, confirms this. Plaintiff cannot establish that the regulations set forth in the Federal Railroad Safety Act were not satisfied. Plaintiff's argument that the real estate exception should apply is nonsensical and wrong.

Train approach warning was a proper form of on track protection. SEPTA's liability expert, David Brookings, former Chief Engineer of Kansas City Southern Railway Company, confirms this. A copy of Mr. Brookings's Reports are attached hereto as Exhibit D. Train approach warning was used at the location of the incident for three weeks prior. 540 trains came

through the area while work was being performed, without incident. Based on sight distances and the maximum authorized speed for trains on the Airport Line, one Watchman in the location where Mr. Rhoads was standing on the east side of the Airport Line was appropriate for Train Approach Warning. Proper Job Safety Briefings were performed daily to instruct and remind the roadway workers of proper work and safety procedures and the prearranged place of safety. SEPTA did not violate any federal regulations. Plaintiff's actions alone caused this accident.

B. SEPTA'S CROSS-CLAIMS AGAINST INDEPENDENCE AND MINORITY SERVICES.

Finally, SEPTA maintains Cross-Claims against Independence and Minority Services. Based upon the Contract for Technical Services between SEPTA and Independence, Independence owes insurance coverage for defense and indemnity to SEPTA for Plaintiff's claims. Likewise, based upon the Contract between Independence and Minority Services, Minority Services owes insurance coverage for defense and indemnity to SEPTA for Plaintiff's claims. SEPTA has incurred unreimbursed defense costs and no insurer has agreed to indemnify SEPTA for this claim. As such, both Independence and Minority have failed to obtain insurance which covers SEPTA for Plaintiff's claims.

IV. DAMAGES

It is not disputed that Plaintiff sustained a mild traumatic brain injury, sternum fracture, jaw fracture, and nose fractures. However, Plaintiff's alleged continuing injuries are very much in dispute. Plaintiff stopped all treatment years ago. Plaintiff claims to suffer from PTSD and anxiety, but he has not sought any counseling in years.

As Defendants' neuro psychology expert, Dr. Thomas Swirsky-Sacchetti notes, diagnoses of cognitive dysfunction are based upon Plaintiff's self-reporting, rather than objective tests. Dr. Swirsky-Sacchetti concludes that Plaintiff provided sub-optimal effort during testing, and that

Plaintiff's self-reported long term memory loss is also inconsistent with his concussion. Plaintiff has a tendency to magnify symptoms. Plaintiff does not have any "organically based neurocognitive deficits related to the accident of 3/12/18." Plaintiff is no longer taking any psychotropic medication for his emotional distress nor is he in counseling. Dr. Sacchetti questions whether the conclusions of Plaintiff's experts, including his vocational/financial experts, are accurate due to insufficient effort. A copy of Dr. Swirsky-Sacchetti's Expert Reports are attached hereto as Exhibit E.

Likewise, Defendants' neuro surgical expert, Dr. Gene Salkind, concludes that Plaintiff showed symptom magnification and embellishment; Plaintiff does not require any further treatment related to the trauma of 03/12/2018. Plaintiff is capable of returning to light duty work. There is no objective evidence of ongoing trauma-related pathology. Due to the signs of symptom magnification and embellishment, it is difficult to assess the veracity of Plaintiff's complaints. A copy of Dr. Salkind's Expert Reports are attached hereto as Exhibit F.

Relative to Plaintiff's alleged wage loss and loss of earning capacity, Plaintiff was cleared to return to work, a fact with which his own experts agree. Yet he has not sought any type of employment. Plaintiff can obtain alternate employment, including as a dispatcher, reservation, transportation, and travel clerk, customer services representative, or parts salesman. All of these jobs are light or sedentary, and would provide a wage comparable to what Plaintiff was making prior to the accident. Plaintiff has not experienced any future lost wages. Plaintiff's average income for the past 10 years is \$18,565.40. Any past lost wages would be limited to the time of the accident to November 2018 or, at the latest, January 2019, based upon Plaintiff's own medical experts' opinions. This is just eight months of wage loss. A copy of Dr. Cipko's Expert Reports are attached hereto as Exhibit G.

Finally, punitive damages are not recoverable against SEPTA, as it is a Commonwealth Party.

V. SETTLEMENT

Plaintiff's Demand:	Plaintiff demanded \$11,000,000 from Independence. Plaintiff has demanded the cap of \$250,000 from SEPTA
Defendant SEPTA's Offer:	\$0
Defendant Independence's Offer:	\$0
Defendant Minority Service's Offer:	\$0

VI. MEMO EXHIBIT LIST⁵

Exhibit A – Plaintiff's Railroad Safety Credentials

Exhibit B – Deposition Testimony of Plaintiff Jesse Hernandez

Exhibit C – Job Briefing Document

Exhibit D – David Brookings Liability Expert Reports

Exhibit E – Dr. Thomas Swirsky-Sacchetti, Neuro Psychology Expert Reports

Exhibit F – Dr. Gene Salkind, Neuro Surgical Expert Reports

Exhibit G – Dr. Robert Cipko, Vocational Expert Reports

VII. REVISED TRIAL EXHIBIT LIST

1. All Pleadings
2. Video from Train, March 12, 2018
3. Video from Site Inspection
4. Video of Train, July 11, 2022
5. Video from Train, July 11, 2022

⁵ As Memorandum Exhibits were attached to SEPTA's Pre-Trial Conference Memorandum, they are not attached hereto.

6. David Brookings Liability Expert Reports
7. Curriculum Vitae of David Brookings
8. Dr. Thomas Swirsky-Sacchetti, Neuro Psychology Expert Reports
9. Curriculum Vitae of Dr. Thomas Swirsky-Sacchetti
10. Dr. Gene Salkind, Neuro Surgical Expert Reports
11. Curriculum Vitae of Dr. Gene Salkind
12. Dr. Robert Cipko, Vocational Expert Reports
13. Curriculum Vitae of Dr. Robert Cipko
14. William Daley Expert Reports
15. Curriculum Vitae of William Daley
16. Photographs
17. SEPTA Job Briefing Documentation Sheet, 3-12-18
18. Employee Injury Report Form, Jonathan Watts
19. Employee Injury Interview Form, Jonathan Watts
20. Statement of Jonathan Watts
21. Record of Decision FRA/SEPTA Post-Accident Drug and Alcohol Test, Jonathan Watts
22. SEPTA Medical Department Encounter Form, Jonathan Watts
23. Permission for Release of Medical Information, Jonathan Watts
24. SEPTA Railroad Critical Incident Response Checklist, Jonathan Watts
25. SEPTA Critical Incident Employee Acknowledgement Form, Jonathan Watts
26. Employee Accident/Incident Report Form, D. Becker
27. Employee Interview Form, D. Becker
28. SEPTA Railroad Critical Incident Response Checklist, D. Becker
29. SEPTA Critical Incident Employee Acknowledgement Form, D. Becker

30. Employee Interview Form, James M. Ridgway
31. Employee Accident/Incident Report Form, James M. Ridgway
32. Record of Decision FRA/SEPTA Post-Accident Drug and Alcohol Test, James M. Ridgway
33. SEPTA Medical Department Encounter Form, James M. Ridgway
34. SEPTA Railroad Critical Incident Response Checklist, James Ridgway
35. SEPTA Critical Incident Employee Acknowledgement Form, James M. Ridgway
36. James Ridgway Statement, 3-12-18
37. Jermie Ortiz Statement, 3-12-18
38. E-mail from Jermie A. Ortiz Dated March 13, 2018
39. E-mail from William C. Boyer Dated March 15, 2018
40. E-mail from William C. Boyer Dated March 16, 2018
41. E-mail from Gerald G. Griffin Dated March 13, 2018
42. E-mail from M. Monastero Dated March 7, 2019
43. Accident at Phil involving Train and Contractor Employee
44. SEPTA Transportation Department Supervisor's Special Report, Jose Zayas
45. Unusual Occurrence Report
46. Incident Investigation Form
47. Executive Summary Report Dated March 12, 2018, Prepared by System Safety
48. System Safety Corrective Action Plan
49. System Safety Division Memorandum Dated March 23, 2018
50. System Safety Diagram
51. SEPTA System Safety Memorandum Dated March 4, 2019 Reissuing Report

52. Executive Summary Report Dated March 12, 2018, Prepared by System Safety, Modified and Re-Issued March 4, 2019
53. SEPTA Transit Police Police Information
54. SEPTA Transit Police Department Complaint or Incident Report
55. Commonwealth of Pennsylvania Police Crash Reporting Form
56. Jose Reyes Statement, 3-12-18
57. Levon Bryant Statement, 3-12-18
58. Jorge Lopez Statement, 3-12-18
59. Juan Vega Statement, 3-12-18
60. Ernesto Cintron Statement, 3-12-18
61. Charles Rhoads Statement, 3-12-18
62. Alexander Garcia Statement, 3-12-18
63. Edwin Quay Statement, 3-12-18
64. Anthony Ocasio Statement, 3-12-18
65. Sammy Sosa Statement, 3-12-18
66. Contract for Technical Services, March 8, 2018
67. Subcontractor Agreement, February 1, 2018
68. Jesse Hernandez Roadway Worker Safety Examination
69. Jesse Hernandez Roadway Worker ID Card
70. Minority Services Payroll Records
71. Amtrak Police Department Report
72. Nationwide Declaration Sheet
73. Erie Insurance Declaration Sheet
74. Plaintiff's Initial Disclosures

75. Plaintiff's Responses to SEPTA's Interrogatories
76. Plaintiff's Responses to SEPTA's Requests for Production of Documents
77. Plaintiff's Responses to Independence's Requests for Production of Documents
78. Plaintiff's Document Production
79. SEPTA's Initial Disclosures
80. SEPTA's Responses to Plaintiff's Interrogatories
81. SEPTA's Responses to Plaintiff's Requests for Production of Documents
82. SEPTA's Responses to Independence's Requests for Production of Documents
83. SEPTA's Document Production
84. Independence's Initial Disclosures
85. Independence's Responses to Plaintiff's Interrogatories
86. Independence's Responses to Plaintiff's Request for Production of Documents
87. Independence's Document Production
88. Minority Services Initial Disclosures
89. Minority Services Document Production
90. Deposition Transcript of Plaintiff Jesse Hernandez, with Exhibits
91. Video of Plaintiff Jesse Hernandez Deposition
92. Deposition Transcript of Nydia Vasquez, with Exhibits
93. Deposition Transcript of Charles Rhoads, with Exhibits
94. Deposition Transcript of Edwin Quay, with Exhibits
95. Deposition Transcript of William Steve Hare, with Exhibits
96. Deposition Transcript of Jermie Ortiz, with Exhibits
97. Deposition Transcript of Jonathon Watts, with Exhibits
98. Deposition Transcript of Dennis Coleman, with Exhibits

99. Deposition Transcript of James Ridgway, with Exhibits
100. Deposition Transcript of Anthony Ocasio, with Exhibits
101. Deposition Transcript of Ernesto Cintron, with Exhibits
102. Deposition Transcript of Sammy Sosa, with Exhibits
103. Deposition Transcript of Juan Vega, with Exhibits
104. Deposition Transcript of Jorge Lopez, with Exhibits
105. Deposition Transcript of Alexander Garcia, with Exhibits
106. Deposition Transcript of William Boyer, with Exhibits
107. Transcript of Plaintiff Jesse Hernandez Examination with Dr. Robert Cipko
108. Transcript of Plaintiff Jesse Hernandez Examination with Dr. Gene Salkind
109. Transcript of Plaintiff Jesse Hernandez Examination with Dr. Swirsky-Sacchetti
110. Plaintiff's Workers' Compensation Records from Erie Insurance
111. Plaintiff's Workers' Compensation Records from Pennsylvania Bureau of Workers' Compensation
112. Plaintiff's Workers' Compensation Records from Bingamen Hess
113. Plaintiff's Workers' Compensation Records from Pond Lehocky
114. Plaintiff's Workers' Compensation Records from Flagship City Insurance Company
115. Plaintiff's Workers' Compensation Records from Marshall Dennehey
116. Plaintiff's Records from Internal Revenue Service
117. Plaintiff's Records from Social Security Administration, Division of Disability Records
118. Plaintiff's Records from Social Security Administration, Division of Earnings
119. Plaintiff's Employment Records from Minority Services
120. Plaintiff's Employment Records from Independence

121. Plaintiff's Medical, Billing, and Radiology Records from Penn Presbyterian Medical Center
122. Plaintiff's Medical, Billing, and Radiology Records from Penn Care at Home & Hospice Services
123. Plaintiff's Medical, Billing, and Radiology Records from Dr. Steven Diamond
124. Plaintiff's Medical, Billing, and Radiology Records from Dr. Justin Wiley
125. Plaintiff's Medical, Billing, and Radiology Records from Dr. Richard Schmidt
126. Plaintiff's Medical, Billing, and Radiology Records from Premier Physical Therapy
127. Plaintiff's Medical, Billing, and Radiology Records from Behavioral Medicine of Pennsylvania
128. Plaintiff's Medical, Billing, and Radiology Records from Daphne Goldberg
129. Plaintiff's Medical, Billing, and Radiology Records from Hospital Ryder – Humacao
130. Plaintiff's Medical, Billing, and Radiology Records from Institute for Advanced Medicine and Wellness
131. Plaintiff's Medical and Billing Records from City of Philadelphia Fire Department, Emergency Medical Services
132. Plaintiff's Records from City of Philadelphia, Police Department
133. Plaintiff's Records from Family Department, Family Socio-Economic Development Agency
134. Records from Occupational Safety & Health Administration
135. Putnam Parcel Plan
136. Putnam Parcel Plan w/ Google Earth
137. System Safety Diagram
138. Airport Line Diagram

139. SEPTA's RRD Accident Inspection Form V.E.M. Equipment Inspection Reports
140. Air Brake Terminal Test Reports
141. Locomotive Inspection and Repair Records
142. Train Logs
143. SEPTA Railroad Division Roadway Worker Protection Manual, Fifth Edition
144. SEPTA Railroad Division Emergency Evacuation Procedures Manual SEP-1, Third Edition
145. SEPTA Railroad Division Passenger Operations Instruction Manual, Ninth Edition
146. SEPTA Air Brake Testing and Inspection Manual SAB-1, Third Edition
147. SEPTA Railroad Division Timetable No. 6
148. SEPTA Railroad Division Electric Traction Operating Instructions SET-01
149. Management Contract for the Airport High Speed Line between the City of Philadelphia and SEPTA a/k/a the Airport Line Agreement
150. SEPTA Video Retrieval Special Report
151. Jesse Hernandez Facebook
152. Jesse Hernandez Surveillance

VIII. REVISED TRIAL WITNESS LIST

1. Plaintiff Jesse Hernandez
2. Nydia Vasquez
3. Jonathon Watts, SEPTA
4. Jermie Ortiz, SEPTA
5. James Ridgway, SEPTA
6. William Boyer, SEPTA
7. Michael Monastero, SEPTA

8. Dennis Coleman, SEPTA
9. Pedro Ferrer, SEPTA
10. Matt Gramlich, SEPTA
11. Adri Mobley, SEPTA
12. George Anastasiou, SEPTA
13. Michael Kucenic
14. John Strickland
15. David Brookings
16. Robert Cipko, Ph.D.
17. Gene Salkind, M.D.
18. Thomas Swirsky-Sacchetti, Ph.D.
19. William Daley
20. Steve Hare, Independence / Minority Services
21. Anthony Ocasio
22. Ernesto Cintron
23. Alexander Garcia
24. Jorge Lopez
25. Sammy Sosa
26. Juan Vega
27. Charles Rhoads
28. Edwin Quay
29. Records Custodian, Erie Insurance
30. Records Custodian, Pennsylvania Bureau of Workers' Compensation
31. Records Custodian, Bingamen Hess

32. Records Custodian, Pond Lehocky
33. Records Custodian, Flagship City Insurance Company
34. Records Custodian, Marshall Dennehey
35. Records Custodian, Internal Revenue Service
36. Records Custodian, Social Security Administration, Division of Disability Records
37. Records Custodian, Social Security Administration, Division of Earnings
38. Records Custodian, Minority Services
39. Records Custodian, Independence
40. Records Custodian, Penn Presbyterian Medical Center
41. Records Custodian, Penn Care at Home & Hospice Services
42. Records Custodian, Dr. Steven Diamond
43. Records Custodian, Dr. Justin Wiley
44. Records Custodian, Dr. Richard Schmidt
45. Records Custodian, Premier Physical Therapy
46. Records Custodian, Behavioral Medicine of Pennsylvania
47. Records Custodian, Daphne Goldberg
48. Records Custodian, Hospital Ryder – Humacao
49. Records Custodian, Institute for Advanced Medicine and Wellness
50. Records Custodian, City of Philadelphia Fire Department, Emergency Medical Services
51. Records Custodian, City of Philadelphia, Police Department
52. Records Custodian, Occupational Safety & Health Administration

IX. LENGTH OF TRIAL

It is anticipated that trial will take three (3) weeks.

**MARSHALL DENNEHEY WARNER
COLEMAN & GOGGIN**

BY: 
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Melanie J. Foreman, Esquire
Attorneys for Defendant, Southeastern
Pennsylvania Transportation Authority

Date: January 3, 2023

CERTIFICATE OF SERVICE

I do hereby certify that a true and correct copy of the foregoing Revised Pre-Trial Memorandum was served via the Court's electronic filing system upon the following counsel of record:

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Date: January 3, 2023